

1.

CASE #	CASE NAME	HEARING NAME
CVME2400553	PARTNERSHIP FOR ACTIVE LEARNING SERVICES, INC. VS TENAJA COMMUNITY SERVICES DISTRICT	DEMURRER

Tentative Ruling: Continue the Demurrer and the Case Management Conference to September 9, 2026.

It is currently unclear whether Defendants satisfy their obligation to meet and confer in person or by telephone with Plaintiff prior to filing the demurrer. Moving party may not waive the requirements set forth in CCP § 430.41. Moreover, considering the assertions made by Defendants in the non-substantive Reply, this lack of clarity is intensified. Nonetheless, perhaps defense counsel can clarify this at the hearing. (Please note that despite the lack of proper meet and confer efforts, a substantive workup follows.

NOTE: Defendants, TCSD and Avalon, have NOT filed a substantive reply on the grounds that they were improperly served with the Opposition and therefore were unable to file a substantive reply on time. Defendants' counsel asserts that they agreed to electronic service "only if" four named individuals were served. Plaintiff served the demurrer on only two of them, who were both out of the office (on vacation and maternity leave) at the time of service having left out of office replies directing inquiries to the remaining two individuals. It is recommended that considering this service issue, the demurrer is continued to allow Defendants to file a substantive reply.

The hearing on the demurrer is continued to allow moving Defendants, TCSD and Avalon to provide an opportunity to satisfy their obligation to meet and confer and file the appropriate declaration(s) in accordance with CCP § 430.41. Counsel for Defendants, Jennifer L. Thompson, filed a meet and confer declaration that is not clearly in compliance with CCP § 430.41. Specifically, Ms. Thompson declares, in conclusory fashion: "I have met and conferred with Plaintiff's counsel via email on multiple occasions regarding the issues raised in the instant demurrer. I have also met and conferred with him via telephone. We reached an impasse in our meet and confer efforts, which prompted the filing of the instant demurrer." (Dec.Thompson ¶ 10.) Ms. Thompson has not provided *the date*¹ that she "met and conferred" with Plaintiff's counsel, which makes it unclear whether she met and conferred with Plaintiff's counsel by phone about *the TAC*. Therefore, it appears that substantive meet and confer efforts as to the TAC have not been engaged in by telephone or in person as required.

Accordingly, the hearing on the demurrer is continued. Moving Defendants are ordered to meet and confer with Plaintiff by telephone or in person for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer and motion to strike. As part of the meet and confer process, Defendants shall identify with legal support the basis of the alleged deficiencies in the subject pleadings.

¹ This is important to ensure that meet and confer efforts occurred as to the operative TAC as opposed to prior versions of the complaint.

Plaintiff shall provide legal support for her position that the pleadings are legally sufficient or, in the alternative, how they may be further amended to cure any legal insufficiencies.

After meeting and conferring, Defendants shall, 10 days before the continued hearing date, set above do one of the following:

- (1) vacate the hearing on the demurrer;
- (2) file with the Court a declaration stating the parties have agreed that Plaintiff will file an amended pleading/claim for damages before the date set forth above; or
- (3) file with the court a declaration stating how the parties met and conferred and identifying the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve.

The Court will not accept further briefing.

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CASE #	CASE NAME	HEARING NAME
CVME2401231	TARQUINI VS FOUR WINDS ENTERPRISES INC.	MOTION TO STRIKE

c GRANTED; NO OPPOSITION FILED

3.

CASE #	CASE NAME	HEARING NAME
CVME2500794	FOX VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEY'S FEES

Tentative Ruling: GRANTED

Award fees of \$13,095.00.

Costs were sought via memorandum of costs; Defendant did not file a motion to tax costs.

Plaintiff Sheila Fox brought this Song-Beverly action regarding a 2022 Chevy Trailblazer that had brake, radio and infotainment defects. The complaint, filed 1/17/25, asserts: (1) breach of implied warranty of merchantability; and (2) breach of express warranty. On 1/21/26, Plaintiff filed a notice of settlement.

Plaintiff moves for attorney's fees of \$19,994 plus a .1 multiplier of \$1,999.40, and costs of \$1,722.33, for a total of \$23,715.73. Plaintiff contends that Defendant refused to meet and confer about the fees. Defendant failed to make any formal settlement offers, requiring Plaintiff to litigate. Plaintiff asserts that the fees are reasonable. She argues that any challenge must be to specific entries.

Defendant contends that this was a streamlined case resolved under AB 1755, and nothing more than initial disclosures were provided when the case settled on October 24, 2025. It complains that the bulk of the fees sought relate to this motion and a non-existent motion to strike costs. It argues the court should deny the motion as untimely since the parties settled on 10/24/25. It otherwise challenges various entries. It contends the case does not warrant a multiplier. It requests the court strike costs as they are not reasonable.